Doug. 96; *Collins* v. *Blantern*, 2 Wils. 352; 1 Vent. 121; Doug. 30; *Long* v. *Jackson*, 2 Wils. 8; Skin. 327.

Jones, in reply, was directed by the court to confine his observations to the 5th and 6th pleas.

No fraud or covin is charged in either of those pleas; the doctrines, therefore, respecting a sealed instrument being vacated by fraud, do not apply. The case depends upon the principles of the common law, applicable to contracts under seal. The 5th and 6th pleas are in substance the same; and if the 5th be bad, as the court below decided, the 6th must be bad for the same reasons. There is no case in which a sealed instrument has been set aside on the grounds alleged in the plea. If the facts would not maintain an action of deceit, they will not avoid a contract under seal. They cannot even be given in evidence. It must be a *matter that goes to the whole contract, and shows it to be void *ab initio*. It must be an allegation of fraud, or of illegal consideration. [*109

The case of *Hayne* v. *Maltby*, 3 T. R. 438, is the only one cited which bears upon the present. But there, the contract was void *ab initio*, and the case was decided upon the principle of fraud. It is immaterial, what the facts of the case were, or how slight the evidence of fraud was. It is the principle only which is to be considered.

In an action at law upon a sealed contract, you cannot go into the question of consideration, but to show it fraudulent or illegal. *Chandler* v. *Lopus*, Cro. Jac. 4; 1 Com. Dig. 184; 2 East 446.

February 24th, 1809. CUSHING, J. (Marshall, Ch. J., not sitting in the cause), delivered the opinion of the court,(*a*) as follows:—The insurance in this case being general, as well for the parties named as "for all and every other person or persons to whom the vessel did or might appertain," and containing no warranty of neutrality, belligerent as well as American property was covered by it. Some of the parties being described as of Richmond, does not necessarily imply that they all resided there; but if they did, mere residence would not make them citizens; and even then, an express warranty was necessary, if it had been designed to run only a neutral risk. This is an answer to the 7th as well as to the 4th plea; because there can be no undue concealment as to the parties interested, where the terms of the policy are so broad as to preclude the necessity, either of disclosing their names, or of inserting them in the instrument.

*The eighth plea is also bad. The defendants acknowledge, under seal, to have received a consideration of 17½ per cent. for the insurance they made, which it appears was secured by a note, the amount of which was to be deducted from the sum to be paid for a loss, if any happened. On the face of the instrument, then, a valid consideration, if that be necessary, is stated, and if the note be never paid, it cannot vacate the contract, or be relied on as a defence to an action on it. This court knows not why a court of equity has been applied to for an injunction. Its proceedings, therefore, can have no influence on the present suit, for notwithstanding its interposition in the way mentioned in this plea, the defendants cannot be deprived of the right they have reserved of deducting the amount [*110

(*a*) Present, CUSHING, WASHINGTON, LIVINGSTON and JOHNSON, Justices.